Week 7

Generative Artificial Intelligence

Jin-Ho King
Boston University School of Law
October 15, 2026

Today’s objectives

- Understand the basics of generative artificial intelligence
- Understand the potential risks and benefits of its use

Generative Artificial Intelligence

Mata v. Avianca, Inc., 678 F. Supp. 3d 443 (S.D.N.Y. 2023)

- Court sanctioned two attorneys Schwartz and DoLuca for their court filings and lack of candor.
- Schwartz created the filings with ChatGPT.
- The court filings contained references to cases that could not be found.
- The court ordered the attorneys to submit copies of the cases.
- Schwartz asked ChatGPT to find the cases; ChatGPT fabricated the cases.
- Schwartz later claimed that he did not know that ChatGPT could produce fictitious cases.
- DoLuca did not review any of these filings substantively.

Sanctions:

- Notify the client in writing, with copies of the court's sanction order and other related paperwork.
- Notify in writing each of the judges falsely identified as the authors of the fake cases.
- Send copies of the written notices to the court.
- $5,000.00 penalty

Shahid v. Esaam, 376 Ga. App. 145 (2025)

- The trial court wrote an opinion that contained citations to non-existent case law.
- Those cases had earlier been cited in one of the parties' court submissions.
- The appellate court reversed the trial court's order.

Potential Benefits of AI in the Legal Field

- Efficiency and productivity
- Drafting assistance
- Brainstorming
- Legal research
- Summarization
- Improved access to justice

Use of AI Tools

- Grammar and style checking
- Enhance clarity and concision
- Conform to legal writing conventions
- Facilitate production of polished, persuasive documents
- Sentiment and tone analysis

- Drafting and document generation
  - Prepare standard legal documents
  - Analyze contracts to suggest language
- Language translation and accessibility
- Legal research
- Predictive analytics

Ethical Use of AI

Rule 1.1: Competence

“A lawyer shall provide competent representation to a client. Competent representation requires the legal knowledge, skill, thoroughness and preparation reasonably necessary for the representation.”

Rule 1.6: Confidentiality

“(a) A lawyer shall not reveal information relating to the representation of a client unless the client gives informed consent, the disclosure is impliedly authorized in order to carry out the representation or the disclosure is permitted by [by these rules].”

Rule 1.4: Client Communications

A lawyer shall “reasonably consult with the client about the means by which the client's objectives are to be accomplished.”

Responsibilities to Court and Duties of Candor

- A “lawyer shall not bring or defend a proceeding, or assert or controvert and issue therein, unless there is a basis in law or fact for doing so that is not frivolous.”
- A lawyer must not make false statements of fact or law to a tribunal or fail to correct a material false statement previously made.
- A lawyer must not engage in “conduct involving dishonesty, fraud, deceit or misrepresentation.”

Responsibilities of Supervising and Supervised Attorneys

- Rules 5.1 and 5.3 govern the responsibilities of supervising attorneys.
- Rule 5.2 governs the responsibilities of subordinate lawyers.

Rule 1.5: Fees and Expenses

Rule 1.5 may limit the ability of attorneys to bill clients in the context of AI use.

AI Use Checklist

- ❑ Read and review every cited authority
- ❑ Confirm citation and pincite are correct
- ❑ Confirm the quotation and cited principle are correct
- ❑ Use a citator to check for negative treatment
- ❑ Verify factual assertions

Consequences for Improper Use of AI

Judicial authority to impose sanctions:

- Rule 11
- Local rules
- Inherent authority

Possible sanctions include—

- Fines
- Striking filings
- Ethics referrals
- Loss of admission
- Reputational harm